

6. 24CV01402 LIANG, ZHIBIN V. HUANG, XIANGMEI

EVENT: Application/Motion to Enforce Amended Judgment and for Order Effectuating Transfer of Real Property

The Application/Motion to Enforce Amended Judgment and for Order Effectuating Transfer of Real Property is granted, and the Court will sign the form of order submitted. The Court directs Plaintiff to submit ex parte an Application for Appointment of an Elisor that is in compliance with Butte County Local Rule 1.12, Subdivisions B, C, and E, the Court finding that the remaining requirements have been satisfied.

7-8. 24CV03754 RAHMN, JACK v. MULHOLLAND, JACK ET AL

EVENTS: (1) City of Chico's Motion for Summary Judgment

(2) State Defendants' Motion for Summary Judgment or, Alternatively, Summary Adjudication

City of Chico's Motion for Summary Judgment; or in the Alternative,
Summary Adjudication of the Issues Against the Complaint

Defendant and Cross-Complainant City of Chico's ("the City" herein) Request for Judicial Notice is granted. Plaintiff Jack Rahmn's ("Plaintiff" herein) Request for Judicial Notice is granted.

The Court finds that triable issues of material fact exist as to whether the subject premises where Plaintiff was injured was in a dangerous condition at the time of the incident and whether the injury to the Plaintiff was proximately caused by the dangerous condition [Undisputed Material Fact ("UMF" herein) Nos. 31, 36]; whether the City had actual or constructive notice of the condition causing Plaintiff's injuries [UMF No. 37]; and whether the City is protected by design immunity under *Government Code* §830.6 based on the approval and reasonableness of the subject crosswalk and intersection

The City of Chico's Motion for Summary Judgment; or in the Alternative, Summary Adjudication of the Issues Against the Complaint is denied. Counsel for the Plaintiff shall prepare and submit a form of order consistent with this ruling within two weeks.

State Defendants' Motion for Summary Judgment or,
Alternatively, Summary Adjudication

Defendants State of California and Board of Trustees of the California State University (collectively "Defendants" herein) Request for Judicial Notice is granted. Plaintiff Jack Rahmn's ("Plaintiff" herein) Request for Judicial Notice is granted.

The Court finds that triable issues of material fact exist as to whether the alleged dangers at the bike lane/crosswalk intersection were reasonably apparent to a person exercising due care [Undisputed Material Fact ("UMF" herein) Nos. 44, 45]; whether the alleged lack of warnings or a protective barrier did or did not proximately cause Plaintiff's injury [UMF Nos. 9, 13, 19, 47, 48, 52, 58, 65]; whether Defendants are or are not

responsible for the construction or maintenance of the bike lanes on Warner Street, including the selection and installation of warning signs [UMF Nos. 24, 62, 63, 73; Plaintiff's Additional Undisputed Material Fact ("AUMF" herein) Nos. 86-87]; and whether Defendants are immune from liability for claims arising from its alleged failure to install warning signs or traffic control devices/barriers [UMF Nos. 74, 75, 85; AUMF Nos. 86-87].

The State Defendants' Motion for Summary Judgment or, Alternatively, Summary Adjudication is denied. Counsel for the Plaintiff shall prepare and submit a form of order consistent with this ruling within two weeks.

9. 25CV01528 GRAYSON, JOHN I, IV v. FRANCHISE TAX BOARD

EVENT: Plaintiff's Tentative Ruling Order Motion

There is no proof of service in the Court's file and therefore the Court cannot confirm whether notice complies with Code of Civil Procedure §1005. Additionally, based on Defendant's Opposition and supporting Declaration, the Court concludes that the Motion was not timely served. Plaintiff's Tentative Ruling Order Motion is denied.

10. 25CV02285 GUTIERREZ, PEDRO v. CALIFORNIA DEPARTMENT OF WATER RESOURCES ET AL

EVENT: Demurrer by Defendant Butte County to Plaintiff Zulema Herrera and by and Through her GAL Noemi Herra; Pedro Gutierrez First Amended Complaint

Defendant County of Butte's ("Defendant" herein) Request for Judicial Notice is granted. The Demurrer is overruled in its entirety. The Court finds that the First Amended Complaint ("FAC" herein) sufficiently states facts to support the dangerous condition claim [see FAC at Attachment Prem.L-1], and therefore the derivative wrongful death claim is likewise sufficiently pled, and the Demurrer is overruled on that basis. The Court further finds that the FAC sufficiently alleges that a government claim was presented by Plaintiff Pedro Gutierrez [see FAC at ¶9.a.] and Defendant's Request for Judicial Notice at Exhibit B raises only an issue of whether there was a defect or omission in the claim as presented. A determination as to the sufficiency of the claim is a factual argument that is not proper on Demurrer, and the Demurrer is overruled on this basis. Lastly, the Court finds that the FAC alleges sufficient facts to support that Plaintiff Pedro Gutierrez has standing to assert his claims [see FAC at ¶12.b.] and the Demurrer is overruled on that basis. Defendant County of Butte is to file and serve its Answer to the First Amended Complaint within 20 days' of this hearing. Counsel for the Plaintiffs shall prepare and submit a form of order consistent with this ruling within two weeks.